

Court No. - 40

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

Put up this case as fresh on 21.12.2022 in the top ten cases.

Order Date :- 12.12.2022

vkj

Court No. - 40

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Vikram D. Chauhan, J.

On the request of Sri Udit Chandra, learned counsel for respondent nos. 2 to 5, list this case as fresh on 9.1.2023 in the top ten cases.

Order Date :- 21.12.2022

VMA

(Vikram D. Chauhan, J.)

(Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C.,Udit Chandra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Passed over on the request of learned counsel for the petitioner.

Put up as a fresh case on 23.01.2023.

Order Date :- 9.1.2023/vkg

Court No. - 3

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Heard Shri Shashi Kumar Srivastava, learned counsel for the petitioners, Shri Amit Manohar, learned Additional Chief Standing Counsel for the State-respondents and Shri Udit Chandra, learned counsel for the respondent nos.2 to 5.

Briefly stated facts of the present case are that the petitioners are the owner of the House No.D 59/71-A, Mohalla- Mahmoorganj, Varanasi. They had let out their property to one M/s Dishnet Wireless Private Limited, who took an electricity connection in its own name. Subsequently, the aforesaid M/S Dishnet Wireless Private Limited went for resolution under Section 10 of The Insolvency and Bankruptcy Code, 2016 (hereinafter referred to as 'IBC'). The petitioners have filed an application for payment of arrears of rent and electricity dues before the NCLT, Mumbai Branch, Mumbai in CP (IB)-298/(MB)/2018 in which the NCLT has passed an order dated 16.10.2018. Relevant directions as contained in paragraph no.4 of the aforesaid order, which are reproduced below:

"a) Premises in question shall be vacated by Aircel Limited on or before 15.12.2018 by handing over vacant possession to the Owner of the premises. The Resolution Professional shall make all necessary arrangements to shift the equipments of the Debtor Company lying in the impugned premises. Legal formalities to be completed by Ld. Resolution Professional as required for vacating a Leased premises.

b) The outstanding Electricity Bill shall be paid by the Debtor Company/ Aircel through Ld. Resolution Professional up to the date of vacating the premises.

c) Ld. Resolution Professional is expected to arrange the Funds so that the outstanding rent can be paid to the Owner of the leased premises up to the date of vacating the premises. In case of non-availability of Funds a provision is to be made so that in phased manner the outstanding rent shall be paid to the Owner of the Premises. For the purpose of fulfilment of this direction a separate Deed of Understanding can be executed.

d) The payment to Electricity Department and the payment of Rent

shall be considered as "Insolvency Resolution Process Cost."

In compliance to the aforesaid order of the NCLT, the petitioners have got payment of arrears of rent. Pursuant to the aforequoted order of the NCLT, the respondent no.4 has moved two applications dated 18.02.2019 and 06.08.2019 respectively before the Resolution Professional for payment of electricity dues of Rs.21,20,124/- (Rupees Twenty One Lakh Twenty Thousand One Hundred Twenty Four). According to the respondent no.4, the said payment has not yet been received from the Resolution Professional despite aforequoted order of the NCLT. Consequently, the respondent no.4 is not granting fresh electricity connection to the owner of the building i.e., the petitioners. Aggrieved with the non-grant of electricity connection, the petitioners have filed the present writ petition.

Learned counsel for the petitioners submits that in view of the provisions of para 4.3(f)(vii) of the U.P. Electricity Supply Code, 2005, the respondent no.4 can neither recover the dues of the erstwhile tenant from the petitioners nor he can refuse to grant electricity connection to the owner i.e., the petitioners. He further refers to the provisions of the IBC and certain judgements of the Hon'ble Supreme Court including the case of Ghanshyam Mishra.

Learned counsel for the respondent nos.2 to 5 prays for and is granted 10 days' time to file counter affidavit.

Put up as a fresh case before appropriate Bench **on 27.03.2023.**

Order Date :- 13.3.2023

Ankit.

Court No. - 3

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Counter affidavit dated 27.03.2023 filed today on behalf of respondent nos. 2 to 5, is taken on record.

Learned counsel for the petitioners prays for and is granted three days' time to file rejoinder affidavit.

List/ put up in the additional cause list on **04.04.2023 at 03:00 P.M.**

Order Date :- 27.3.2023/vkg

Court No. - 3

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C.,Udit Chandra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Anish Kumar Gupta,J.

Put up on **19.04.2023 at 3:00 P.M** in the additional cause list.

Order Date :- 13.4.2023

Shubham Arya

Court No. - 3

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Rejoinder affidavit filed today is taken on record.

List/Put up in the additional cause list **on 27.04.2023 at 3 P.M.**

Order Date :- 19.4.2023

Ankit.

Court No. - 3

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

As prayed, put up in the additional cause list **on 05.05.2023 at 03:00 P.M.**

Order Date :- 27.4.2023

NLY

Court No. - 3

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

As prayed, put up in the additional cause list on **10.05.2023 at 3.00 P.M.**

Order Date :- 5.5.2023

SFH

Court No. - 3

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

As prayed, list/put up on **17.5.2023 at 3:00 PM** in the additional cause list.

Order Date :- 10.5.2023/vkg

Court No. - 40

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. As substantial arguments has been advanced by the parties but due to paucity of time the matter could not be heard finally.
2. Let the matter be posted on 05.12.2023 at 2 P.M.

Order Date :- 2.12.2023

S.P.

Court No. - 40

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard Shri Ashish Kumar Srivastava, learned counsel for the petitioners, Ms. Subhra Singh, learned Standing Counsel for State-respondent no. 1 and Shri Udit Chandra, learned counsel for respondent nos. 2 to 5.

2. The matter was heard at length today. The petitioner in para-11 of the writ petition has quoted an order dated 16.10.2018 passed by the learned National Company Law Tribunal, Mumbai, wherein, the learned Tribunal had passed the following directions :-

"(a) Premises in question shall be vacated by Aircel Limited on or before 15.12.2018 by handing over vacant possession to the owner of the premises. The Resolution Professional shall make all necessary arrangements to shift the equipments of the Debtor Company lying in the impugned premises. Legal formality to be completed by Ld. Resolution Professional as required for vacating a Leased premises.

(b) The outstanding Electricity Bill shall be paid by the Debtor Company/Aircel through Ld. Resolution Professional up to the date of vacating the premises.

(c) Ld. Resolution Professional is expected to arrange the Funds so that the outstanding rent can be paid to the Owner of the leased premises up to the date of vacating the premises. In case of non-availability of Funds a provision is to be made so that in phased manner the outstanding rent shall be paid to the Owner of the Premises. For the purpose of fulfillment of this direction a separate Deed of Understanding can be executed.

(d) The payment to Electricity Department and the payment of Rent shall be considered as 'Insolvency Resolution Process Cost'."

3. It was further contended by the learned counsel for the petitioner that as per the directions of NCLT, the premises was vacated on 15.12.2018 and the outstanding rent dues had also been released. It is further submitted that the respondent no. 4 had requested the IRP to make the payment for the electricity dues vide letters dated 18.02.2019 and 06.08.2019 which has not been paid which was to be paid by the insolvency resolution professional and

it should be considered as "Insolvency Resolution Process Cost". The counsel for the petitioner further submits that the resolution plan has been approved.

4. Notice has still not been issued to the insolvency professional, we deem it appropriate to issue notice to the respondent no. 6 to file his response.

5. List this matter for final disposal on 20th December, 2023.

Order Date :- 5.12.2023

Rama Kant

Court No. - 39

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Surendra Singh-I, J.

As jointly prayed, put up on 19.01.2024.

Order Date :- 12.1.2024

KS

(Surendra Singh-I, J.) (Saumitra Dayal Singh, J.)

Court No. - 39

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Manjive Shukla, J.

1. Mr. Udit Chandra, learned counsel for the respondents may supply written note together with compilation of case-laws, by 25.1.2024.

2. Put up this case on 29.1.2024.

Order Date :- 19.1.2024

Salim

(Manjive Shukla, J.) (S.D. Singh, J.)

Court No. - 39

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Manjive Shukla, J.

1. Time is short today.

2. Put up on 07.2.2024.

Order Date :- 29.1.2024

Faraz

(Manjive Shukla, J.) (S. D. Singh, J.)

Court No. - 39

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Manjive Shukla, J.

As prayed, put up on 28.02.2024 in top ten cases.

Order Date :- 7.2.2024

A. Mandhani

(Manjive Shukla, J.) (S.D. Singh, J.)

Court No. - 39

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd.
And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar
Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Surendra Singh-I, J.

List on 19.03.2024 in the top 10 cases.

Order Date :- 28.2.2024

KS

(Surendra Singh-I, J.) (S.D. Singh, J.)

Court No. - 39

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Saumitra Dayal Singh, J.

Hon'ble Surendra Singh-I, J.

1. Time is short today.

2. Put up on 03.04.2024 in top 10 cases.

Order Date :- 19.3.2024

KS

(Surendra Singh-I, J.) (S.D. Singh, J.)

Court No. - 40

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

As prayed by counsel for the petitioners, list this case on 21.05.2025 in the top ten cases.

Order Date :- 21.4.2025

Shahroz

(Dr. Y.K. Srivastava, J.) (Shekhar B. Saraf, J.)

Court No. - 40

Case :- WRIT - C No. - 33073 of 2022

Petitioner :- M/S Kanhaiya Beverages Pvt. Ltd. And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Ashish Kumar Srivastava

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Shekhar B. Saraf, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

Heard learned counsel for the parties.

Time is given to both the parties to file their affidavits to bring on records the documents as desired by the Bench.

List on 21.07.2025 in top ten cases.

Order Date :- 21.5.2025

Imroz

(Dr. Y. K. Srivastava, J.) (Shekhar B. Saraf, J.)



2026:AHC:140302-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 33073 of 2022

M/S Kanhaiya Beverages Pvt. Ltd. And Another

.....Petitioner(s)

Versus

State Of U.P. And 5 Others

.....Respondent(s)

Counsel for Petitioner(s)	:	Ashish Kumar Srivastava
Counsel for Respondent(s)	:	C.S.C., Udit Chandra

Court No. - 40

HON'BLE SARAL SRIVASTAVA, J.
HON'BLE SUDHANSHU CHAUHAN, J.

List has been revised. No one is present on behalf of petitioners to press this petition. However, learned counsel for the respondents is present.

Accordingly, the writ petition is **dismissed** for want of prosecution.

Interim order, if any, stands vacated.

July 13, 2026
NS

(Sudhanshu Chauhan,J.) (Saral Srivastava,J.)